

**BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL
COMMISSION, GHAZIABAD (U.P.)**

CONSUMER COMPLAINT NO. _____ OF 2026

(Under Section 35 of the Consumer Protection Act, 2019)

IN THE MATTER OF:

Vikas Gandhi

...Complainant

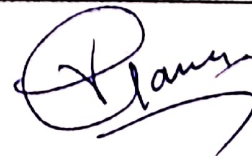
VERSUS

ACKO General Insurance Limited

...Opposite Party

PROFORMA FOR FILING CONSUMER COMPLAINT

1. Commission before which the complaint is filed	District Consumer Disputes Redressal Commission, Ghaziabad, Uttar Pradesh
2. Case type	Consumer Complaint under Section 35 of the Consumer Protection Act, 2019
3. Name of the Complainant	Vikas Gandhi, S/o Shri Surendra Gandhi
4. Age / Date of birth; Gender	About 53 years (DOB 09.10.1972); Male
5. Complete address of the Complainant	D-20, 1st Floor, Dayanand Nagar, Ghaziabad, Uttar Pradesh – 201001
6. Mobile / E-mail	9911198000 / 9amdeal@gmail.com
7. Complainant type; Senior Citizen; Widow	Individual; No; Not applicable
8. Name and address of the Opposite Party	ACKO General Insurance Limited, through its Managing Director / Authorised Signatory, 2nd Floor, 36/5 Hustle Hub One East, Somasandrapalya, 27th Main Road, Sector 2, HSR Layout, Bengaluru, Karnataka – 560102; E-mail: gro@acko.com; Phone: 1800 266 2256; IRDAI Regn. No. 157; CIN U66000KA2016PLC138288
9. Whether the Complainant is a "consumer" under Section 2(7)	Yes — health insurance policy purchased from the Opposite Party for consideration for personal/family use
10. Policy No. / Claim No.	Policy No. ASHP202400001607 (04.11.2024–03.11.2025; Sum Insured ₹10,00,000; since renewed as ASHP202400001607R1, 04.11.2025–03.11.2026). Claim No. 25062100350/1
11. Value of the goods or services paid as consideration	Annual premium ₹31,065/- (Policy No. ASHP202400001607)
12. Fee payable	NIL — consideration paid does not exceed ₹5,00,000 (Rule 7, Consumer Protection (Consumer Disputes Redressal Commissions) Rules, 2020)
13. Date on which cause of action arose	20–21.06.2025 (hospitalisation); 25.06.2025 and 26.06.2025 (rejection and repudiation of claim); continuing thereafter; 02.07.2026 (Insurance Ombudsman Award with liberty to approach any other forum); 15.07.2026 (Opposite Party's GRO reiterating repudiation)



14. Whether the complaint is within limitation (Section 69)	Yes — filed within two years of the cause of action
15. Territorial jurisdiction	Section 34(2)(d) — the Complainant resides at Ghaziabad and the entire hospitalisation and treatment took place at RS Maitri Health Care, J-278, Patel Nagar 1st, Ghaziabad
16. Pecuniary jurisdiction	Within the limits of the District Commission — consideration paid (premium ₹31,065/-) and total claim ₹1,62,358/- plus interest
17. Case category	Insurance → Health Insurance / Medclaim → Rejection/denial of claim
18. Gist of the complaint	Arbitrary repudiation of a fully documented, medically necessary hospitalisation claim of ₹37,358/- (Circumcision + Meatoplasty for tight phimosis with balanitis, meatal stenosis and UTI, performed on the day of admission) citing the 2-year “Specific Illness” waiting period, while ignoring the exception “unless necessitated by malignancy” in the insurer’s own clause, the biopsy-confirmed premalignant condition (BXO), and the treating uro-oncologist’s certificate — amounting to deficiency in service (Section 2(11)) and unfair trade practice (Section 2(47))
19. Relief claimed	(a) ₹37,358/- (claim amount) with interest @ 12% p.a. from 26.06.2025 till realisation; (b) ₹1,00,000/- compensation for mental agony and harassment; (c) ₹25,000/- litigation costs; (d) any other relief deemed fit. Total: ₹1,62,358/- plus interest
20. Earlier remedies availed	(i) Opposite Party’s grievance mechanism — Tickets 12568674, 12582411, 12582412 — rejected; (ii) Insurance Ombudsman, Noida — Complaint NOI-H-056-2526-0961; Award IO/NOI/A/HI/0061/2026-2027 dated 02.07.2026 (complaint dismissed, but medical necessity held undisputed and Permanent Exclusion held inapplicable; liberty granted to approach any other forum); (iii) National Consumer Helpline (INGRAM) Grievance No. 9719631 dated 14.07.2026 — in process
21. Whether any complaint on the same cause of action is pending before any other Consumer Commission or Court	No
22. Documents relied upon	Annexures C-1 to C-14, as per Index
23. Advocate for the Complainant (if any)	Party-in-Person

I declare that the particulars stated above are true and correct to my knowledge and belief.

Place: Ghaziabad

Date: 22.July.2026



COMPLAINANT

(Vikas Gandhi)